

## 21STCV30008 21STCV30008

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-02

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Case Number: 21STCV30008 Hearing Date: July 2, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311 (formerly 19)

Tentative

Ruling

21STCV30008

BOG

SUN EO vs WON J. JANG, et al.

July 2,

2026

8:30

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NATURE OF PROCEEDINGS:

MOTION OF LAW OFFICES OF LEE AND PARK TO BE RELIEVED AS COUNSEL-CIVIL.

RULING:

The Court grants the  
Motion.

The Court will complete,  
sign and file the Form Order received-stamped on June 4, 2026.

Movants Law Offices of  
Lee and Park to give notice.

#### ANALYSIS:

By the Motion, filed June  
4, 2026, counsel moves to be relieved as attorney of record for Defendant KH  
& AH REALTY, INC., by declaring, in the form Declaration, at paragraph 2,  
that the attorney-client relationship broke down, making it impossible to effectively  
represent Defendant, and the client has breached the attorney retainer  
agreement.

Here, the form notice,  
declaration, proposed order, and proof of service sufficiently comply with the  
requirements for a motion to be relieved as counsel. (See Cal. Rules of Court, rule 3.1362.)

Further, moving counsel's  
declaration shows cognizable grounds for withdrawal:

A breakdown in the attorney-client  
relationship (or personality clash). (Estate of Falco v. Decker (1987)  
188 Cal.App.3d 1004, 1014 (Falco).)

The client by conduct renders it  
unreasonably difficult for the member to carry out the employment  
effectively (e.g., noncooperation or noncommunication). (Rules Prof.  
Conduct, rule 1.16(b)(4). Cf.  
Falco, supra, 188 Cal App.3d at p. 1020 ["We find no abuse of  
discretion in the trial court's implicit finding rejecting the contention  
that respondents' lack of cooperation justified appellants'  
withdrawal."].)

The client breaches an agreement or  
obligation to the member as to expenses or fees. (Rules Prof. Conduct,

rule 1.16; Lempert v. Sup. Ct. (2003) 112 Cal.App.4th 1161, 1173.)

Courts can allow

withdrawal of an attorney representing a corporation. (Gamet v. Blanchard (2001) 91 Cal.App.4th 1276, 1284; Ferruzzo v. Superior Court (1980) 104 Cal.App.3d 501, 504.) However, a substitution of attorney form filed as to a corporation proceeding as a self-represented litigant, would be void. (Johnson v. Hayes Cal. Builders, Inc. (1963) 60 Cal.2d 572, 576.)

Finally, no opposing

document is filed in order to show any prejudice caused by attorney withdrawal. (See Rules Prof. Conduct, rule 1.16(d); Vann v. Shilleh (1975) 54 Cal.App.3d 192, 197.)

Therefore, the Court

grants the Motion and will sign the proposed Order counsel submitted.